

Court No. - 29

Case :- WRIT - C No. - 35253 of 2016

Petitioner :- Vaidya Nath Vishwakarma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashwaini Mishra

Counsel for Respondent :- Narendra Kumar Tiwari, Narendra Kumar Tiwari

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Heard learned counsel for the parties.

The petitioner had approached the writ Court earlier by filing writ petition no. 64856 of 2014 which was disposed off vide order dated 2.12.2014 directing the petitioner to file objection under Clause 6.5 of *the U.P. Electricity Supply Code, 2005* (for short 'the Code 2005') for correction of the bill.

According to Sri Narendra Kumar Tiwari, learned counsel for the Electricity Department, the said objection of the petitioner was decided and a revised bill was given to the petitioner vide letter dated 7.1.15. The bill was revised from Rs. 57,142/- to Rs. 56,814/- This amount has not been deposited and the petitioner has now filed the present writ petition praying for deciding his representation under Clause 6.5 of the Code, 2005 dated 18.4.2016 with regard to the bill for Rs. 1,21,235/-.

We are of the opinion that the petitioner should first clear the arrears as per the revised bill which was given on 7.1.2015 before his application under Clause 6.5 of the Code, 2005 to be considered afresh.

The writ petition is, accordingly, **disposed off.**

Order Date :- 1.8.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)